

- RAG Learning

2.1 The Constitution

Politics — Edexcel (9PL0) — Component 2: UK Government, Section A

This opens Component 2. The UK constitution is **uncodified**, **unentrenched** and **unitary**, and almost every question on the topic reduces to a consequence of one of those three words. Be precise about what each means before anything else.

Constitution — the set of rules determining where power lies, how it is exercised and what limits apply.

Uncodified — not collected into a single authoritative document. (Not "unwritten": most of it *is* written, just scattered.)

Unentrenched — constitutional law has no higher status than ordinary law, so it can be changed by a simple Act of Parliament.

Unitary — sovereignty is held centrally; regional power is devolved from the centre rather than constitutionally divided.

Parliamentary sovereignty — Parliament is the supreme law-making body; no Parliament binds its successors; no body may override an Act.

The rule of law — everyone is subject to the law, including government; law is applied equally and through fair process.

Statute law — Acts of Parliament, the highest source.

Common law — judge-made law built on precedent, plus the residual royal prerogative.

Conventions — unwritten rules of practice, binding in practice but not enforceable in court.

Authoritative works — texts of such standing that they guide practice.

Devolution — delegation of powers to subordinate bodies, with sovereignty retained at the centre.

1. Nature and sources

Source	What it is	Examples
Statute law	Acts of Parliament. The highest source, since Parliament is sovereign	Human Rights Act 1998; Scotland Act 1998; Constitutional Reform Act 2005; European Union (Withdrawal) Act 2018
Common law	Judge-made precedent and the royal prerogative	Judicial review principles; prerogative powers over treaties and deployment
Conventions	Binding in practice, not enforceable in court	Salisbury Convention; royal assent; collective responsibility; the Sewel Convention
Authoritative works	Texts treated as guides to practice	Erskine May's <i>Parliamentary Practice</i> ; Bagehot's <i>The English Constitution</i> ; the Cabinet Manual
Treaties	International agreements given domestic effect	European Communities Act 1972 (repealed 2020); the ECHR via the HRA

Historical development

Document	Significance
Magna Carta 1215	The monarch is subject to law; the beginnings of due process
Bill of Rights 1689	The monarch may not suspend laws or raise taxes without Parliament; free elections; parliamentary privilege
Act of Settlement 1701	Parliament determines the succession; security of tenure for judges
Acts of Union 1707	Created the united Parliament of Great Britain
Parliament Acts 1911 and 1949	Established the primacy of the Commons over the Lords

European Communities Act 1972	Gave EU law domestic effect and supremacy; repealed on withdrawal
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Dicey identified **parliamentary sovereignty** and **the rule of law** as the twin pillars. The tension between them is examinable: if Parliament may legislate on anything, it may legislate contrary to the rule of law, and no court may stop it.

2. How the constitution has changed since 1997

Reform	What it did	Assessment
Devolution (1998 onwards)	Scottish Parliament, Welsh Assembly/Senedd, Northern Ireland Assembly; extended by the Scotland Acts 2012 and 2016 and Wales Acts 2014 and 2017	The most far-reaching change; dispersed power territorially and created a quasi-federal settlement in a formally unitary state
Human Rights Act 1998	ECHR rights in domestic courts; s.3 interpretive duty; s.4 declarations; s.6 duty on public authorities	Real but unentrenched — repeal has been proposed repeatedly
House of Lords Act 1999	Removed most hereditary peers, leaving 92	Left no party with a Lords majority; stage two came only with the House of Lords (Hereditary Peers) Act 2026, which removed the 92
Freedom of Information Act 2000	Right of access to information held by public authorities	Wide exemptions and a ministerial veto
Constitutional Reform Act 2005	Created the Supreme Court; removed the Law Lords from the legislature; Judicial Appointments Commission	Genuine separation of the judiciary from the political branches

Fixed-term Parliaments Act 2011	Transferred control of early elections from the PM to the Commons	Repealed in 2022, restoring the prerogative — evidence that reform is reversible
Referendums	Increasing use on constitutional questions	Created binding political expectations with no attached rules

The pattern to state in an essay: reform dispersed power **outwards** (devolution), **upwards** (rights law) and **sideways** (a separate Supreme Court), but left the centre largely untouched — the executive's dominance of the Commons is essentially as it was.

3. Devolution

	Scotland	Wales	Northern Ireland
Body	Scottish Parliament (1999)	Senedd (1999)	NI Assembly (1998)
System	AMS	AMS until 2026; closed-list PR since	STV
Powers	Primary legislation; substantial tax powers after 2012 and 2016	Primary legislation since 2011; some tax powers	Primary legislation; power-sharing executive required
Distinctive feature	Independence referendum 2014; the most developed settlement	Began with executive devolution only, built up incrementally	Rooted in the Good Friday Agreement; suspended repeatedly

Why the settlement is unstable

- **Asymmetry.** Each settlement was negotiated separately in response to different demands, so the three differ in powers and structure. There is no general principle governing what is

devolved, so each new demand is settled ad hoc.

- **The English question.** England has no devolved legislature. The West Lothian question — whether MPs for devolved nations should vote on England-only matters — prompted English votes for English laws in 2015, abandoned in 2021 without resolving anything.
- **The ratchet.** Each transfer has produced demands for more rather than settling the question; the Scotland Acts of 2012 and 2016 followed the 2014 referendum.
- **Unresolved sovereignty.** Westminster retains the legal power to legislate in devolved areas and to repeal the settlements. The **Sewel Convention** says it will not "normally" do so without consent — a formulation tested repeatedly during the Brexit process, and held in *Miller* (2017) to be a convention the courts will not enforce.

Exam Tip: "Quasi-federalism" is the term to use, and to justify: repealing devolution remains legally possible and politically near-unthinkable, so the powers behave as though entrenched without being so. That sentence does the analytical work in a devolution question.

4. Should the constitution be codified?

For codification	Against codification
Clarity — rules currently scattered across five sources collected in one document	Flexibility — the constitution has adapted continuously without any special procedure
Limits on executive power, addressing the "elective dictatorship" problem	Transfers power to unelected judges, who would have the final word on contested political questions
Entrenched rights, protected from a simple majority	Entrenchment freezes arrangements against future adaptation
Could settle the territorial question and the English question	No agreement on content — monarchy, Lords, electoral system, devolution are all contested

Courts could enforce constitutional limits directly

No process exists for producing one with cross-party legitimacy

The strongest argument against is the practical one, and it is circular: a codified constitution would have to be agreed by the institutions whose own position it would determine. That is why codification has been discussed for decades without progressing.

Other reform debates

- **House of Lords** — elected, partly elected, or reformed appointment. Failed in 2003 and 2012. Election supplies legitimacy and creates a rival mandate.
- **Electoral reform** — settled for a generation by the 2011 referendum.
- **An English Parliament or regional assemblies** — the 2004 North East referendum rejected regional devolution decisively; metro mayors have been the route taken instead.
- **A British Bill of Rights** — proposed repeatedly as a replacement for the HRA; critics argue it would weaken protection rather than strengthen it.

5. Does parliamentary sovereignty still describe the UK?

Yes, legally. Parliament legislated to leave the EU, repealing the 1972 Act and demonstrating that even the deepest apparent constraint was reversible. It repealed the FTPA in 2022. No court may strike down primary legislation. Devolved powers rest on statutes Westminster could amend.

Not practically. Repealing devolution or ignoring a referendum result would be politically impossible. The HRA, international agreements and referendum expectations all constrain. *Miller* (2017) held prerogative could not remove statutory rights; *Miller/Cherry* (2019) held a prorogation frustrating Parliament's functions unlawful.

The judgement: sovereignty remains accurate as a description of legal authority and increasingly misleading as a description of how the constitution operates. The constraints are political rather than legal — real but unenforceable and unpredictable, since nobody can say in advance which formally available actions are politically impossible.

Quick recall

- Uncodified, unentrenched, unitary — every question follows from one of these
- Five sources: statute, common law, conventions, authoritative works, treaties
- Dicey's twin pillars: parliamentary sovereignty and the rule of law — and they can conflict
- Since 1997: devolution, HRA 1998, Lords Act 1999, FOI 2000, CRA 2005, FTPA 2011 (repealed 2022)
- Reform dispersed power outwards, upwards and sideways — not at the centre
- Quasi-federal: legally reversible, politically near-unthinkable
- Sewel Convention is not enforceable — *Miller* (2017)
- Codification's decisive obstacle is circular: the institutions it would bind must agree it